

MASTER SERVICES AGREEMENT

Creative and Contract Staffing

Contract ID: LCS-MSA-2025-0115

This Master Services Agreement (this “Agreement” or “MSA”), effective as of January 15, 2025 (the “Effective Date”), is entered into by and between **Lumen Creative Staffing, Inc.**, with offices at 815 Western Avenue, Suite 300, Seattle, WA 98104 (“Agency”), and **Contoso Marketing, LLC**, with offices at 1450 Harborview Avenue, Suite 600, Seattle, WA 98101 (“Client”). Agency and Client are each a “party” and together the “parties.”

1. SERVICES

- 1.1 Agency provides contract and contract-to-hire creative talent (designers, copywriters, producers, motion artists) on a per-engagement basis under individual **Work Orders** that reference this MSA.
- 1.2 Each Work Order specifies role, rate, duration, and deliverables. This MSA governs all Work Orders.

2. TERM AND RENEWAL

- 2.1 **Initial Term.** Two (2) years from the Effective Date, ending **January 14, 2027**.
- 2.2 **No Automatic Renewal.** This MSA does **not** renew automatically; the parties may extend it by a signed amendment. Renewal/expiry reference date: **January 15, 2027**. Work Orders active at expiry continue under this MSA’s terms until completed.
- 2.3 **Notice.** Either party may terminate this MSA, or any Work Order, on **thirty (30) days’** written notice.

3. RATES AND ESCALATION

- 3.1 Talent is billed at the hourly rates in the **Rate Card (Schedule 1)**, currently ranging from **\$120/hr to \$180/hr** by role. There is no fixed annual platform fee; total spend is variable and engagement-driven (historical annual spend approximately **\$210,000**).
- 3.2 **Rate Escalation.** The Rate Card increases by up to **four percent (4%)** annually on each anniversary of the Effective Date, communicated thirty (30) days in advance.
- 3.3 Invoices are issued bi-weekly per approved timesheets, **net 30**.

4. WORKER CLASSIFICATION AND CONFIDENTIALITY

- 4.1 Agency personnel are Agency’s employees or contractors, not Client’s. Agency is responsible for their wages, taxes, and statutory benefits.
- 4.2 Each placed worker signs Client’s confidentiality and IP-assignment terms before starting. Work product is assigned to Client upon creation.

5. DATA

- 5.1 Agency processes limited personal data of its own personnel and Client contacts for staffing administration only. **No full Data Processing Addendum applies**, but Agency agrees to keep such data confidential and secure and to notify Client of any breach affecting Client personnel data.

6. LIABILITY

Agency's liability is limited to fees paid for the affected Work Order in the prior six months, except for breaches of confidentiality or IP assignment.

7. GOVERNING LAW

This Agreement is governed by the laws of the State of Washington, without regard to its conflict-of-laws principles.

8. GENERAL PROVISIONS

- 8.1 **Notices.** All notices under this Agreement shall be in writing and delivered to the addresses set forth above (or such other address as a party designates in writing) by personal delivery, nationally recognized overnight courier, or certified mail, and shall be deemed given upon receipt.
- 8.2 **Entire Agreement; Amendment.** This Agreement, together with its Schedules and any Work Orders, constitutes the entire agreement between the parties and supersedes all prior or contemporaneous understandings. It may be amended only by a writing signed by both parties.
- 8.3 **Assignment.** Neither party may assign this Agreement without the other's prior written consent, except to a successor in connection with a merger or sale of substantially all of its assets.
- 8.4 **Severability; Waiver.** If any provision is held unenforceable, the remaining provisions remain in full force and effect. No waiver of any breach shall constitute a waiver of any subsequent breach.
- 8.5 **Force Majeure.** Neither party shall be liable for any delay or failure to perform due to causes beyond its reasonable control.
- 8.6 **Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original and all of which together constitute one instrument.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Lumen Creative Staffing, Inc.

Contoso Marketing, LLC

Authorized Signature

Authorized Signature

By:

By:

Name: G. Petrova

Name: A. Rourke

Title: Managing Director

Title: Creative Operations Lead

Date: January 15, 2025

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